

1 Pre- Screening

1.1 Is this a new demand or an assessment of an existing service?

Response

☐ New demand

☐ Assessment of an existing service

1.2 Please describe the project or service briefly and attach supporting documents

Response

Not answered

1.3 Is the service offered within the EU?

Notes:

The service is considered offered within the EU both in case the recipient of the service is located in the EU or if the content is accessible from the EU.

'Recipient of the service' means any natural or legal person who uses an intermediary service, in particular for the purposes of seeking information or making it accessible.

Response

☐ Yes

☐ No

1.4 Please select all that are included in the service.

Examples: internet exchange points, wireless access points, virtual private networks, DNS services and resolvers, voice over IP and other interpersonal communication services

NOTE: DSA is applicable to intermediary services offered to recipients of the service (our customers, both enterprise and consumer) that are located in the Union. Intermediary services are mere conduit, caching and hosting services, the latter includes online platforms and online marketplaces.

Intermediary services:

- a 'mere conduit' service that is the transmission of information, provided by our customer, in a communication network, or the provision of access to a communication network
- a 'caching' service includes the automatic, intermediate and temporary storage of the information, for the sole purpose of making more efficient the information's onward transmission to other recipients
- a 'hosting' service is the storage of information provided by, and at the request of, a recipient of the service

Response

☐ Transmission or storage of information provided by the recipient of our service (i.e user generated communication or content by our customers)

☐ Access to a communication network

☐ None

1.5 Is the service in scope for DSA?

Decision point for privacy:

The service is in scope for DSA if

- it's provided within the EU
- involves transmission of information provided by the customer or access to communication network or contains a temporary or longer term storage of information provided by the customer

If the answer to Q1.3 is 'No' and 'None' is selected in Q1.4 the service is not in scope for DSA. In this case, you can close the assessment at this stage.

Response

☐ Yes

☐ No

1.6 Please select the business process or product that is in scope of this assessment

Response

Not answered

1.7 Please provide the project name

In case it doesn't have a separate project name please add the record name here also.

Response

Not answered

- 1.8 Has a privacy assessment (in the Global Privacy Assessment Questionnaire) been conducted about the service? If yes, please provide the OneTrust ID

Response

☐ Yes ☐ No

- 1.9 Please select the Local Market or Group Entity that is leading this project.
I.e. the entity that is responsible for the design and introduction of this project.

Response

Not answered

- 1.10 Please select the Local Markets and/or Group Entities where the service is going to be introduced.
In case of Group projects please select all markets where the service is introduced, in case of local projects please select your market.

Response

Not answered

- 1.11 Which VF legal entities/subsidiaries are responsible for this service?
*Please select the actual legal entity within your market that provides the service contractually.
In case this is a global project, please select Not Applicable.*

Response

☒ Not applicable

- 1.12 Please provide the contact details (e-mail address) of the business owner.

Response

Not answered

- 1.13 What is the targeted go live date?

Response

Not answered

- 1.14 Does the service include temporary storage of information (caching)?

Response

☐ Yes ☐ No

- 1.15 Does the service include long term storage of information (hosting)?

Response

☐ Yes ☐ No

- 1.16 Does the service make possible for third parties to upload content to our platform with the intention of sharing it with the public?

Response

☐ Yes ☐ No

- 1.17 Does the service make possible for third party traders to upload goods or services to our platform with the intention of selling it to consumers?
Note: 'consumer' means any natural person who is acting for purposes which are outside his or her trade, business, craft, or profession.

Response

☐ Yes ☐ No

- 1.18 Which category the subject of the assessment falls under according to the Digital Services Act?
Decision point for privacy: which service category of the DSA the service falls under?

Response

Not answered

- 1.19 Who is the service accessible for?
Please select who can have access to the content within the service.

Response

Not answered

- 1.20 What is the expected (in case of already live services the actual) average number of users monthly?

Response

Not answered

2 DSA general assessment

- 2.1 Are the liability rules reflected in the Terms & Conditions or equivalent contract?
Please see the possibilities for Vodafone's liability exemption detailed by service category [here](#)

Response

☐ Yes ☐ No

- 2.2 Does Vodafone monitor the content regularly that is transmitted within/provided for the service?

Response

☐ Yes ☐ No

- 2.3 Do you have clear principles and policies on content moderation or on lack of thereof, including

- the scope of moderation (conflict with Terms & Conditions and/or illegality) and
- consideration of all related legal requirements and prohibitions?

Response

☐ Yes ☐ No

- 2.4 If Vodafone monitors the content, what is it monitored for?

Response

☐ The content is monitored for Terms & conditions conflict only ☐ The content is monitored for illegality only ☐ The content is monitored for both Terms & conditions conflict and illegality ☐ Other

- 2.5 If content is monitored for legality, please describe what rules do you apply to decide whether the content is illegal?

Response

☐ Not applicable

2.6 If the content is monitored, what is the regularity of it?

Response

☒ Continuous ☐ Based on built-in triggers ☐ Ad hoc
☐ Daily ☐ Weekly ☐ Monthly
☐ Other ☐ Not applicable

2.7 Please describe the content monitoring principles in general in more details and attach the policy (if any) which it is based on

Response

☐ Not applicable

2.8 If Vodafone doesn't monitor the content, what is the reason for that?

Response

☐ Content monitoring not allowed by contract ☐ Content monitoring not allowed due to legal restrictions (e.g. E-privacy directive) ☐ Content monitoring not considered necessary i.e business decision
☐ Not applicable

2.9 Do you have terms and conditions clauses in place reflecting any restrictions on the information that can be provided by the customers, including the principles, methods, scope and rules of content moderation? If yes, please attach evidence

*Note: if content monitoring is not in place this fact should be reflected in the Terms & Conditions
Details on the terms and conditions requirements can be found [here](#)*

Response

☐ Yes ☐ No ☐ Not applicable

2.10 If the service is primarily targeted towards minors are the Terms & Conditions explained in a way that minors can understand?

Response

☐ Yes ☐ No ☐ Not applicable

2.11 Do you have a process in place on actions to be taken when receiving order from an authority to act against illegal content?

Response

☐ Yes ☐ No

2.12 Please describe the process briefly in relation to authority orders and attach supporting documents (if exists).

Response

☐ Not applicable

2.13 Do you have a process in place to report yearly on the content moderation activity of the previous year in an easily accessible way in a machine readable format?

The requirements of the process and the required content can be found [here](#)

Response

☐ Yes ☐ No

2.14 Do you have a single point of contact designated towards the authorities and is this contact communicated in an easily accessible way (e.g. on a website)?
Please attach evidence e.g screenshot

Response

☐ Yes ☐ No

- 2.15 Do you have a single point of contact designated enabling the customers to communicate with Vodafone and is this contact communicated in an easily accessible way (e.g. on a website)? Please attach evidence e.g. screenshot

Response

☐ Yes ☐ No

- 2.16 If your market is located outside the EU and is providing the service to customers within the EU have you designated a legal representative in the EU?

Response

☐ Yes ☐ No ☐ Not applicable

3 Hosting services assessment

- 3.1 Do you have an easily accessible, external facing mechanism in place where anyone (not just customers) can notify Vodafone of information they consider illegal?

You can find more details about the notices and related actions [here](#)

Response

☐ Yes ☐ No

- 3.2 Do you have a process in place to react to the notices without undue delay, including the notification of the notifier of the actions taken?

Response

☐ Yes ☐ No

- 3.3 Do you provide a detailed reasoning (statement of reasons) to the affected customers in case some restrictions are applied against them for providing illegal content or information contrary to the terms and conditions?

The detailed requirements of the statement of reasons and the template can be found [here](#)

Response

☐ Yes ☐ No

- 3.4 Do you have a process in place to inform the law enforcement authorities when suspecting that a criminal offence involving a threat to the life or safety of a person or persons has taken place, is taking place or is likely to take place?

Response

☐ Yes ☐ No

4 Online platform assessment

- 4.1 Do you have any restrictions on the information or content that can be provided by the customers?

Response

☐ Yes ☐ No

- 4.2 If you have restrictions is it reflected in the Terms & Conditions?

Response

☐ Yes ☐ No

- 4.3 Do you have an easily accessible, free internal complaint handling system in place where customers or those who submitted a notice to us can raise complaint against the decisions affecting them?

Requirements of the internal complaint handling system can be found [here](#)

Response

☐ Yes ☐ No

4.4 Is the internal complaint handling system accessible for the customers and notifiers for at least 6 months after the decision has been communicated to them?

Response

☒ Yes ☐ No

4.5 Do you have a process in place for handling the complaints submitted through the internal complaint-handling system in a timely, non-discriminatory, diligent and non-arbitrary manner?

Response

☒ Yes ☐ No

4.6 Please describe the complaint handling process briefly and attach supporting documents (if exists)

Response

Not answered

4.7 Do you have a notice in place in an easily accessible place - for example in the Terms and Conditions - informing the customers that they have the possibility to turn to out of court dispute settlement bodies for dispute resolution? Please attach evidence (e.g. screenshot)

Response

☒ Yes ☐ No

4.8 Do you have technical and organizational measures in place to ensure that trusted flaggers' notices are given priority and processed without undue delay?

Response

☒ Yes ☐ No

4.9 Do you have a process in place to submit the statement of reasons in a machine readable format to the Commission?

Response

☒ Yes ☐ No

4.10 Do you have a logging system in place where the instances of having to take action against a specific customer for providing illegal content are tracked?

Response

☒ Yes ☐ No

4.11 Do you have a process in place for suspending, for a reasonable period of time and after having issued a prior warning, customers for frequently providing illegal content?

The conditions and requirements of the process can be found [here](#)

Response

☒ Yes ☐ No

4.12 Do you have a logging system in place where the instances of receiving unfounded notices from a specific notifier are tracked?

Response

☒ Yes ☐ No

4.13 Do you have a process in place for suspending, for a reasonable period of time and after having issued a prior warning, the processing of notices of notifiers or complaints of complainants for frequently submitting unfounded notices or complaints?

The conditions and requirements of the process can be found [here](#)

Response

☒ Yes ☐ No

4.14 Do you have a process in place to track the number of active monthly users in the platform and publish it every 6 month?

Response

☐ Yes ☐ No

4.15 Do you have a process in place to report yearly on the number of disputes, suspension and monthly active users?

The requirements of the process and the required content can be found [here](#)

Response

☐ Yes ☐ No

4.16 Do you make sure not to design the online platform in a way that it manipulates the customers or makes them unable to make free and informed decisions?

Response

☐ Yes ☐ No

4.17 In case advertisements are available on the platform, can the customers identify the below?

- *it is an advertisement*
- *the person on whose behalf the advertisement is placed*
- *the person who paid for the advertisement*
- *meaningful information on the parameters used to determine the recipient*
- *the ways to change the parameters*

Response

☐ Yes ☐ No ☐ Not applicable

4.18 Do we provide a functionality to the customers to declare whether the content they provide is or contains commercial communications?

Response

☐ Yes ☐ No ☐ Not applicable

4.19 Is there a marking system in place that ensures that content categorized as advertisement is highlighted as such to the customers?

Response

☐ Yes ☐ No ☐ Not applicable

4.20 Is it ensured that advertisement based on profiling based on special categories of data (as in Art. 9 of the GDPR) is not applied?

Response

☐ Yes ☐ No ☐ Not applicable

4.21 Are the main parameters used in recommender systems as well as the option for the customers to modify those parameters covered in the Terms and Conditions? Please attach evidence

Response

☐ Yes ☐ No ☐ Not applicable

4.22 Are there appropriate and proportionate measures in place to ensure a high level of privacy, safety, and security of minors?

Response

☐ Yes ☐ No ☐ Not applicable

4.23 Is additional personal data processing taking place for the age verification of customers?

Response

☐ Yes ☐ No ☐ Not applicable

4.24 Is it ensured that advertisement targeting minors is not applied?

Response

☐ Yes ☐ No ☐ Not applicable

5 Online marketplace assessment

5.1 Do you collect the relevant information of traders before allowing them to offer their goods and services on the platform?

Required information is

- the name, address, telephone number and email address
- a copy of the identification document of the trader or any other electronic identification
- the payment account details of the trader
- the trade register in which the trader is registered and its registration number
- self-certification by the trader committing to only offer products or services that comply with the applicable rules of Union law

Response

☐ Yes ☐ No

5.2 Do you have a process in place to verify the information provided by the new trader? (e.g. through online databases, supporting documents etc.)

Response

☐ Yes ☐ No

5.3 Do you have a process in place to collect and verify the information provided by the existing trader within 12 months? (e.g. through online databases, supporting documents etc.)

Response

☐ Yes ☐ No

5.4 In case the existing traders using the service already on the 17th of February 2024, do you have a process in place to suspend them until they provide the required information?

Response

☐ Yes ☐ No ☐ Not applicable

5.5 Is the online interface designed in a way that it enables traders to comply with their obligations regarding the pre-contractual information, compliance and product safety information?

The design should facilitate the provision of at least:

- the information necessary for the clear and unambiguous identification of the products or the services promoted or offered
- any sign identifying the trader such as the trademark, symbol or logo
- where applicable, the information concerning the labelling and marking in compliance with rules of applicable Union law on product safety and product compliance.

Response

☐ Yes ☐ No

6 Result

6.1 Do you have any additional comments or concerns?

Response

Not answered

